



Voortrekkerpark
Huiseienaarsvereniging | Home Owners Association

HOFMEYER ST, STRAND, 7140

Tel: 072 686 0076 | E-pos: vphv123@gmail.com | www.vphomeowners.com

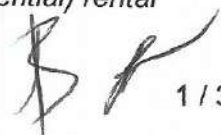
**BELEID / POLICY No. 17.2 – Verhuring en Verkoop van Eenhede /
Leasing and Selling of Units : Maart / March 2024**

OORSIG – Die verhuring en verkoop van eenhede (huise) in die kompleks, is onderworpe aan VP HEV Grondwet, Gedragsreëls, Verkorte Reëls en Beleide, sowel as die Huurooreenkoms en Bylaes met Stad Kaapstad (SK) soos gewysig. Die vereiste dokumente sal voor enige transaksie aan voornemende huurders / kopers oorhandig word vir deeglike voltooiing daarvan. -

OVERVIEW – *The leasing and selling of units (houses) in the complex is subject to the VP HOA Constitution, Conduct Rules, Abbreviated Rules, and Policies, as well as the Rental Agreement and Annexures with the City of Cape Town (CoCT) as amended. The required documents will be made available to prospective lessees / buyers for the proper completion thereof.*

VERHURING VAN EENHEDE / LEASING OF UNITS

1. Die eienaar van die eenheid onderneem om volle verantwoordelikheid te aanvaar vir die aksies van die huurder/s. / *The owner of the unit undertake full responsibility for the actions of the tenant/s.*
2. Enige korrespondensie vanaf die HEV UK sal hoofsaaklik met die eienaar (lid) plaasvind. / *Any correspondence by the HOA EC will mainly be addressed to the owner (member).*
3. Geen lid (eienaar) sal toelaat dat meer as 2 (twee) persone per slaapkamer van die eenheid beset of bly nie. / *No member (owner) shall permit the number of persons residing in the unit to exceed 2 (two) persons per bedroom of the unit.*
4. Die aangehegte dokument "Inligting benodig om die eenheid te verhuur" is die minimum vereiste van die HEV UK, voordat huurders elektroniese toegang tot die kompleks verleen sal word. / *The attached document "Information required for lease of unit" is the minimum requirement of the HOA before a tenant will be granted electronic access to the complex.*
5. Die VP HEV aanvaar dat daar 'n aparte (vertroulike) huurooreenkoms tussen die eienaar en huurder sal wees. / *The VP HOA accepts that there will be a separate (confidential) rental*


1 / 3

agreement between the owner and lessee.

6. Die eienaar (lid) mag van 'n eiendomsagent van sy/haar keuse gebruik maak met die verhuring van die eenheid. Die eienaar moet die volle naam en kontak besonderhede van die agent aan die HEV bekend maak. / *The owner (member) may use an estate agent of his/her choice with the lease of their unit. The full name and contact details of the agent must be made available to the HOA.*

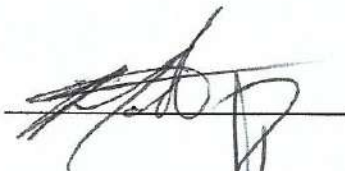
VEKOOP VAN EENHEDE / SELLING OF UNITS

1. Die huidige eienaar (lid) is verplig om die VPHEV **skriftelik** in kennis te stel van die **onderneming** asook die **uiteindelike** verkoop van die eenheid. Alle dokumentasie moet van die HEV Komitee aangevra word **voordat** die proses kan begin. / *The current owner (member) is obliged to notify the VP HOA **in writing** of the **intended** as well as the **ultimate** sale of their unit. All documents must be requested from the HOA Committee, **before** the process is initiated.*
2. Die verkoop van eenhede word streng beheer aangesien Stad Kaapstad vereis dat die VPHEV **tussenganger** in die transaksie sal wees. Die aangehegte vorm (**hersiende** prosedure) is 'n vereiste van SK wat die vereiste proses en dokumentasie aantoon. Die dokumentasie sal deur die aangewese HEV komiteelid oorhandig word. VPHEV het geen insae in hierdie vereistes van SK nie. / *The selling of units is strict as the City of Cape Town expects that the VP HOA be part of, as **middle-man**, in the transaction. The delegated member of the HOA will make the documentation available. The attached form (**revised** procedure) is a requirement from CoCT that indicates the process and documentation required. The VP HOA has no say in these requirements of CoCT.*
3. Die verkeerde prosedure asook verkeerde dokumentasie **sal die oordrag (sessie)** in die nuwe eienaar se naam **vertraag**. / *The incorrect procedure and or documentation **will delay the transfer (session)** of the unit into the new owner's name.*
4. Die VPHEV aanvaar dat daar 'n aparte (vertroulike) verkoopsooreenkoms tussen die eienaar en koper sal wees. / *The VP HOA accepts that there will be a separate (confidential) sale agreement between the owner and buyer.*



5. Die eienaar (lid) mag van 'n eiendomsagent van sy/haar keuse gebruik maak met die verkoop van die eenheid. Die eienaar moet die volle naam en kontak besonderhede aan die HEV bekend maak. / *The owner (member) may use an estate agent of his/her choice with the sale of their unit. The full name and contact details must be made available to the HOA.*
6. Die koper onderneem om lid te word van die VPHEV met die registrasie en oordrag (sessie) van die eenheid in die koper se naam. / *The **purchaser agrees to become a member of the VP HOA** upon registration and transfer (session) of the unit into the purchaser's name.*
7. Sou die registrasie en oordrag van die eenheid **sloer** vir watter rede ook al, sal die voornemende koper **beskou** word as 'n "okkupasie huurder" en die nodige inligting sal aan die HEV UK verskaf word. / *Should the registration and transfer of the unit be **delayed** for whatever reason, the prospective buyer will be **viewed** as an "occupation lessee" and the necessary information, as required by the HOA EC must be provided.*
8. Met die registrasie en oordrag (sessie) van die eenheid sal alle **dienste en rekeninge** na die nuwe eienaar **oorgedra word deur Stad Kaapstad**. / *Upon registration and transfer (session) of the unit, all **utilities and accounts** will be **transferred to the new owner by CoCT**.*
9. Voornemende kopers moet kennis dra, dat die "erf" **slegs gehuur** word vanaf Stad Kaapstad deur middel van 'n **Huur-ooreenkoms**. / *Potential buyers must note that the "erf" is **only leased** from the City of Cape Town by means of a **Rental Agreement**.*
10. Die koper onderneem om gebonde te wees aan die voorskrifte van die VPHEV Grondwet, SK Huurooreenkoms, Bylaes, Gedragsreëls en Verkorte Reëls. / *The purchaser agrees to be bound by the provisions of the VP HOA Constitution, CoCT Rental Agreement, Annexures, Conduct Rules and Abbreviated Rules.*

Voorsitter / Chairman



Onder Voorsitter / Vice Chairman



Bylaes vir vir Verhuring en Aankoop apart : *Annexures for Rental and Purchase separate :*



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Inligting benodig om eenheid te verhuur
Information required for lease of unit

Eienaar / Owner _____

Eenheid / Unit _____

Tel No. _____

1. Let asb daarop dat u as eienaar van die eenheid, onderneem om volle verantwoordelikheid te aanvaar vir die aksies van u huurder/s / *Please note that you as owner of the unit, undertake full responsibility for the actions of your tenant/s.*
2. Neem asb kennis dat hierdie inligting die minimum vereiste is, voordat die huurder/s elektroniese toegang tot die kompleks verleen word / *Please note that this information is the minimum requirement for a tenant to be granted electronic access to the complex.*
3. Aparte huurooreenkoms word tussen die eienaar en huurder benodig, nie vir VPHEV / *Separate lease agreement will be required between owner and lessee, not for VPHOA.*
4. Die verkorte reëls en gedragsreëls word by hierdie dokument ingesluit, bindend op verhuurder en huurder / *The abbreviated rules and conduct rules are attached to this document and are binding on both owner and lessee.*
5. R50-00 administrasie fooi is vooraf betaalbaar aan die VPHEV vir die prosesering van hierdie dokument / *R50-00 administration fee is payable to VPHOA in advance for the processing of this document.*

Huurder 1 volle name / Lessee 1 full names

ID No. _____

Tel No. _____ Persoonlik / Personal

Tel No. _____ Werk / Work

Werk adr / Work add _____

E-pos adr / E-mail add _____ Persoonlik / Personal

E-pos adr / E-mail add _____ Werk / Work

Huurder 2 volle name / Lessee 2 full names

ID No. _____

Tel No. _____ Persoonlik / Personal

Tel No. _____ Werk / Work

Werk adr / Work add _____

E-pos adr / E-mail add _____ Persoonlik / Personal

E-pos adr / E-mail add _____ Werk / Work

Ek onderneem om die reëls van Voortrekkerpark kompleks na te kom soos vervat in die Gedragsreëls en Verkorte reëls van die VPHEV / I undertake to abide by the rules of Voortrekker Park complex as contained in the Conduct Rules and Abbreviated Rules of the VPHOA.

Handtekening / Signature:

Huurder / Lessee _____

Getuie / Witness _____

Geteken te / Signed at _____

Datum / Date _____

Eienaar / Owner _____

Getuie / Witness _____

Geteken te / Signed at _____

Datum / Date _____

Geteken namens VPHEV / Signed on behalf of VPHOA

Vir liassering / For filing – Eenheid / Unit _____





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INTENTION TO SELL/LEASE UNITS IN VOORTREKKER PARK COMPLEX

Before the process of Selling / Leasing can happen, the following must be scrutinised, completed and supplied. This is a requirement imposed on the HOA by CoCT (City of Cape Town).

Please indicate: Intention to sell _____ Intention to Lease _____

Information of the Registered Owner:

Unit Nr: _____

Name and

Surname: _____

ID

Number: _____

Contact

details: _____

Email

address: _____

CoCT Levy Account

Number: _____

CoCT Water Account

Number: _____

Voortrekker Park HOA Levy Account

Number: _____

When was the last payment made on these

accounts: _____

Are all of these accounts paid up to

date: _____

When selling, please attach a copy of both CoCT accounts (Levy and Water)

Cell phone numbers required on the Gate Access System: (please note no numbers will be registered on the gate access system without **all** the information required)

When selling, please attach a copy of the Approved Building Plans held at City of Cape Town.

Is the Unit build according to the Approved Building

Plans? _____

How many Fire extinguishers at the unit and the date of last service: _____

Information of the Buyer/Lessee

Name and

Surname: _____

Address: _____

Please attach a copy of the Proof of Address

[Handwritten signatures]

Contact

details: _____

Email

address: _____

The Buyer / Lessee must be duly aware of the following documents:

Please sign that the following documents has been handed over, read and understood:

Abbreviated

Rules: _____

Voortrekker Park HOA

Constitution: _____

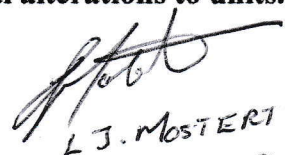
Conduct

Rules: _____

Voortrekker Park HOA or CoCT may require additional information that must be provided by the prospective Buyer / Lessee. Please discuss beforehand with the relevant Executive Committee member.

When buying, the Buyer must be aware that there is currently a **"Moratorium"** applied to Voortrekker Park Complex that prevents the buyer **to do any external alterations to units.**

END


L.J. MOSTERT

2024-02-29



S. Boom

29/2/2024



GUIDELINES FOR THE SALE OF LEASEHOLD RIGHTS AT VOORTREKKER PARK, GORDON'S BAY			☒
List of forms to be submitted	1.	Application form: Cession of City land (duly completed; stamped by Voortrekker Park HOA)	
	2.	Agreement of cession and assignment with starting date (duly completed and signed);	
	3.	Copy of municipal services account (water or elec)	
	4.	Copies of identity documents (buyer and seller)	
	5.	Copy of marriage certificate, if applicable (buyer and seller);	
	6.	Proof of residential address, e.g. municipal services account (buyer and seller)	
	7.	Tax clearance from SARS (buyer and seller)	
	8.	Copy of approved building plans (can be obtained from Somerset West municipal offices; application procedure available at info.Helderberghub@capetown.gov.za)	
	9.	Sales agreement (signed by buyer, seller and witnesses)	
Compliance certificates	10.	Beetle certificate	
		Electrical certificate	
		Plumber certificate	
		Gas certificate (where applicable)	
		(certificates should be submitted with the documents above and also supplied to both the buyer and attorneys)	
Municipal accounts	11.	No Cession will be signed unless all levies have been settled	
Building plans	12.	No Cession will be signed without attached copies of approved building plans (application procedure available at: info.Helderberghub@capetown.gov.za)	
Inspections	13.	An inspection of the property will be conducted both inside and outside of the building, by the City of Cape Town. A technician from Property Management division will contact the agent or seller prior to the inspection, to make arrangements.	
Company	14.	Registration documents	
		Letter of resolution, indicating person holding power of attorney	
		ID of relevant person(s)	
		Proof of address with contact details – not older than 3 (three) months	
Trusts	15.	Registration documents	
		Letter of authority issued by the Masters Office, with names and ID numbers of all members of Trust	
		Letter of resolution, indicating person holding power of attorney	
		Copies of ID's of all active Trust members	
		Proof of address, with contact details of authorised person – not older than 3 (three) months	

Estates	16.	All accounts have to be settled in full	
		Death certificate and copy of ID of deceased	
		Executor's letter from the Masters Office	
		ID of Executor	
		Proof of address, with contact details of Executor – not older than 3 (three) months	
IMPORTANT NOTES			
*Prior written consent from City of Cape Town with regard to leasehold rights		The City will only consider an application to cede any lease rights if the mandatory prior written consent is first obtained. All unit holders need the prior written consent from the City and the endorsement from the VPHOA before they consider selling their leasehold rights, failing which may result in consent being denied and the City applying clause 14.1 (breach/default) of their agreement. A copy of approved building plans in A4 format (obtained from City of Cape Town) should accompany application of consent. Moratorium on building plan submission still stands as confirmed by Daan Visser with effect from April 2019.	
How to obtain documentation		Once the estate agent/owner is in possession of a sales agreement, he/she may request the necessary documentation from Voortrekker Park HOA, via e-mail at vphv123@gmail.com in order to apply for the transfer of cession.	
Submission of forms		The original signed documentation (forms should be completed by hand), as listed above, should be delivered to the Property Management Department in Kuils River at the following address: Omniforum building, 94 Van Riebeeck Avenue, Kuils River. <i>During the period of lockdown, documents may be e-mailed to Eleanor.Arends@capetown.gov.za and the original documentation delivered at 43, Voortrekker Park. Shirley.boom1001@gmail.com</i>	
Estate agents and private sale by owner(s)		Should an estate agent be commissioned for the sale of the property, such agent must be registered to practice as such at the EAAB (Estate Agency Affairs Board) and must also be in possession of a FFC (Fidelity Fund Certificate). Only owners can sell their own houses without being registered. Should a private sale be negotiated between an owner and a buyer, we strongly advise to make use of the services of an attorney to attend to the drafting of a sales agreement, as well as the financial aspects of the transaction. This provides protection for both buyer and seller. The Property Management department of the City of Cape Town requires a signed purchase agreement, in order to proceed with the approval of the cession. However, the department does not get involved in the sale of the property.	

14. TRANSFER OF RIGHTS AND OBLIGATIONS

- 14.1 The lease agreement is not transferable except with the prior written consent of the Council, which consent shall not be withheld unreasonably.



8 September 2025

The Lessees/Voortrekker Park Home Owners Association
Hofmeyer Street
STRAND
7140

Dear Sir/Madam

GUIDELINES FOR THE TRANSFER OF LEASEHOLD RIGHTS ON PORTION OF ERF 1142, STRAND: VOORTREKKER PARK

The City has been made aware of certain sales taking place within Voortrekker Park where unit owners have not informed the City nor the VPHOA of the sale of the unit. The purpose of this letter is therefore to convey the **following important information** to each Lessee/unit owner.

All unit owners are to first obtain written consent from the City and the endorsement from the VPHOA before they consider selling their units, failing which may result in consent to cede and assign the leasehold rights to new unit owners being denied and the City applying clause 14.1 (breach/default) of their agreement. Unit owners are to ensure that the unit is compliant, which means that all structures on site reflect on the approved building plan. It is important to note that **no cession will be signed in the case of breach, i.e. non-compliance or monies owing to the City. Any breach(es) must be rectified before a unit is sold.**

In order to comply with various legislative and policy requirements, the following roles and responsibilities are to be adhered to, which will ensure that the lease process is carried out effectively.

Roles and responsibilities of the Lessee:

1. Inform VPHOA of intention to sell.
2. Provide VPHOA with Letter of Intent as well as copy of approved building plans.
3. Lessee to provide the City's technician with access to the unit when the inspection is conducted on the agreed upon date.
4. Lessee to provide latest invoice stating that rental is up to date (and debt arrangement settled, should there be an arrangement in place)
5. Lessee to obtain lease agreement from VPHOA and related documentation to be completed.
6. Lessee will be responsible for account payments until cession has been transferred to the new unit owner(s). All debits and credits will be transferred as of date of signature by the City's officials.

It is important to note that the City only has a legal undertaking with a unit owner once a lease agreement/cession and assignment agreement has been concluded. In an event that the unit is sold and the leasehold right cannot be ceded to the new owner(s), the current Lessee still has a legal obligation to pay the rental, failing which will result in legal action being taken (and possible eviction of the new owners).

Roles and responsibilities of the VPHOA:

1. Inform the City of intent to sell.
2. Provide Lessee with lease agreement and related documentation to be completed and returned to VPHOA.
3. Provide Lessee with list of compulsory documentation that must accompany the lease agreement.
4. Ensure all documentation are in order and provide same to the City. VPHOA to stamp all documents.

Roles and responsibilities of the City:

1. On receipt of Letter of Intent to sell, arrange for site inspection for compliance.
2. An inspection of the property will be conducted by the City of Cape Town (this will include an inspection of the inside of the unit). The City's technician will contact the agent or seller to make arrangements to undertake a site inspection.
3. Confirm rental is up to date.
4. Once confirmation has been received that the unit is compliant, approval is to be sought from the delegated authorities.
5. Once approval has been obtained, the lease agreement and documentation will be signed by the City officials.
6. Request the Finance Support Branch to transfer the lease out number (rental account) from the assignee to the assignor. All debits and credits will be transferred as of date of signature by the City officials.

The below schedule of documents are to be submitted in the following order (this will allow the signing of the documents to go more smooth):

Package 1	
1.	Memorandum of Agreement of Lease
2.	Annexure 1
3.	Annexure 2
4.	Annexure 3
5.	Annexure 4
6.	Addendum 1
7.	Addendum 2

Package 2	
1.	• Voortrekker Park Letter of Intent and building plan • City application form
2.	Certificates of compliance (where applicable): • Beetle certificate • Electrical certificate • Plumber certificate • Gas certificate (Certificates should be submitted with the above-mentioned documents and is to be supplied to both the buyer and attorneys)

3.	• ID (assignor) • Proof of address • Tax documents • All personal documentation applicable to the assignor
4.	• ID (assignee) • Proof of address • Tax documents • All personal documentation applicable to the assignee
5.	Purchase agreement, etc
	Company: • Registration documents • Letter of resolution, indicating person holding power of attorney • ID of relevant person(s) • Proof of address with contact details (not older than 3 months)
	Trusts: • Registration documents • Letter of authority issued by the Masters Office, with names and ID numbers of all members of Trust • Letter of resolution, indicating person holding power of attorney • Copies of ID's of all active Trust members • Proof of address, with contact details of authorised person – not older than 3 (three) months.
	Estates: • All accounts to be settled in full. • Estate to be finalised. • Death certificate and copy of ID of deceased • Copy of Will to indicate full name/s of heir/s • Executor's letter from the Masters Office • ID of Executor • Proof of address with contact details of Executor – not older than 3 (three) months.

Please take note of the below contact information, should you wish to enquire about the following:

- The City's lease process, you may contact Adele Bannister on 021 444 4148 021 or Adele.Bannister@capetown.gov.za
- Debt/rental arrears queries, you may contact PM.DebtMngtQueries@capetown.gov.za
- Maintenance issues or general enquiries, please contact the VPHOA

Yours faithfully

Adele Bannister

Digitally signed by Adele Bannister
Date: 2025.09.08 13:29:50 +02'00'

DIRECTOR: PROPERTY TRANSACTIONS

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